

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 12-02
Amendments to Tribal Law 11-014
the Chickasaw Nation Citizenship Act of 1994.

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Nation Citizenship Act of 1994 became Tribal Law 11-014 and in which amendments are deemed necessary.

NOW, THEREFORE, BE IT RESOLVED by the Tribal Legislature of the Chickasaw Nation, assembled, to make the following amendments to Tribal Law 11-014, "The Chickasaw Nation Citizenship Act of 1994" in which all Sections as enumerated and contained herein shall replace in their entirety those Sections enumerated and contained in the Act, to wit:

SECTION 2. DEFINITIONS

(A) Words and phrases as used herein, shall be defined as follows:

(1) "The Chickasaw Nation" means the Government of the Chickasaw Nation or all Chickasaw Indians by blood whose names appear on the final rolls of the Chickasaw Nation as approved pursuant to Section 2 of the Act of April 26, 1906, (34 Stat. 137), and their lineal descendants as stated in Section 1, Article II of the Constitution of the Chickasaw Nation,

(2) "Constitution" means the Constitution of the Chickasaw Nation as ratified by the qualified electors of the Chickasaw Nation on August 27, 1983,

(3) "Chickasaw Citizen" means one who is listed as a Chickasaw on the final rolls of the Chickasaw Nation as approved pursuant to the Act of April 26, 1906, (34 Stat. 137) and their lineal descendants, and others who meet the requirements for citizenship contained in this Act, who are, subsequently, granted citizenship in the Chickasaw Nation.

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(4) "Certificate of Degree of Indian Blood" or referred to as "CDIB" means the official document issued by the Bureau of Indian Affairs (BIA) stating a person's degree of Indian blood. The CDIB is an acceptable document as one of the documents to be used in meeting the necessary evidence requirements in application for citizenship in the Chickasaw Nation.

(5) "Office of Tribal Citizenship" means the office designated by the Chickasaw Nation to receive and process applications for and issuances of designations of citizenship in the Chickasaw Nation, pursuant to the provisions of the Constitution and applicable Tribal Laws of the Chickasaw Nation.

SECTION 3. QUALIFICATION OF FUTURE CITIZENSHIP

A person who can show that at least one of his or her natural parents is a Chickasaw as defined by the Constitution of the Chickasaw Nation, is eligible for Citizenship. Adoption of such person by others, whether Chickasaw or not, shall not alter the Chickasaw citizenship eligibility of such person.

SECTION 4. QUALIFICATION FOR CITIZENSHIP OF CHICKASAW/MIXED-BLOOD

Any person who applies for citizenship who otherwise qualifies for citizenship, but who has been enrolled as a citizen of another Indian tribe or tribes, may become a citizen of the Chickasaw Nation; provided that such person shall relinquish, in writing, such citizenship or membership in the other Indian tribe or tribes and file such writing with the Chickasaw Nation.

(SECTION 5 OF TRIBAL LAW 11-014 IS HEREBY REPEALED AND THE SECTIONS THAT FOLLOW IN THIS PR12-02 ARE RENUMBERED, ACCORDINGLY)

SECTION 5. DOCUMENTATION OF CITIZENSHIP

(A) Each Chickasaw person, currently registered to vote as a citizen of the Chickasaw Nation in conformance with the election rules and regulations of the Chickasaw Nation, shall be issued a citizenship card with no further application necessary.

(B) Any other person to whom a Certificate of Degree of Indian Blood has been issued, denoting Chickasaw Indian Blood, as a lineal descendent of an enrollee on the Chickasaw Rolls by Blood of the Dawes Commission Rolls, may make application for

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citizenship. Cancellation of a CDIB file as provided for under the Federal Rules and Regulations governing the issuance of such certificates shall be grounds for the loss of citizenship in the Chickasaw Nation.

(C) Any direct descendent of an enrollee on the Chickasaw Rolls by Blood of the Dawes Commission Rolls who has not yet received a CDIB shall, first, be issued a CDIB under the federal regulations governing the issuance of a CDIB.

(D) Any direct descendent of an enrollee on the Chickasaw Rolls by Blood of the Dawes Commission Rolls whose enrollment does not reflect a specified blood quantum, may make application for citizenship under the same requirements established under the Federal Rules and Regulations governing the issuance of a CDIB.

SECTION 6. APPLICATIONS FOR CITIZENSHIP

(A) The voter application for each current registered voter of the Chickasaw Nation shall be used in lieu of a citizenship application.

(B) All minors, incompetents and those not currently registered to vote in tribal elections who meet any of the documentation requirements for citizenship, must make application for citizenship in order to be considered for citizenship in the Chickasaw Nation. The parent, legal guardian or lawful sponsor of a minor or incompetent may make application for citizenship in the Chickasaw Nation on behalf of a minor or incompetent. If it is determined that a person possesses Indian blood of more than one tribe, a complete statement of relinquishment for the other tribe(s) must be attached to the application.

(C) The citizenship application will contain the pertinent information needed to verify citizenship. In the case of applicants who are 18 years of age or older, the application will contain necessary information to register such applicant as a voter in the Chickasaw Nation should such applicant desire to register to vote, and so long as such applicant meets all the other requirements set out in the Constitution and Tribal Laws of the Chickasaw Nation for voter registration.

SECTION 7. PROCESSING OF THE APPLICATION

(A) Each application for citizenship shall be duly verified through utilization of the CDIB files. All CDIB files will have

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a CDIB computer file number which is automatically assigned for all files. Each application will show the CDIB computer file number, voter registration number (if applicable), the date the file was verified and the signature of the verifying official.

(B) For those descendants of the enrollees on the Chickasaw Rolls by Blood whose enrollment did not reflect a specified blood quantum, the same documentation which is required for the issuance of a CDIB card will be required for consideration of citizenship in the Chickasaw Nation and attached to the citizenship application.

SECTION 8. ACTIONS OF THE CHICKASAW NATION ON REJECTED APPLICANTS

(A) The Office of Tribal Citizenship or the person so designated to receive and process applications for citizenship in the Chickasaw Nation shall provide the Clerk of the Tribal Court, a list of the names of all the rejected applicants, and certify to the Tribal Court that written notice of rejection has been sent to the applicant.

(B) The Office of Tribal Citizenship or the person designated to receive and process applications for citizenship in the Chickasaw Nation may dispose of the file of each rejected applicant after one (1) year from the date of rejection, or upon notification by the Tribal Court that a rejected applicant has been denied a court hearing; or, that the decision of the Chickasaw Nation on rejection of the applicant for citizenship has been confirmed by the Tribal Court, should such action be initiated by a rejected applicant.

SECTION 9. ACTIONS OF THE TRIBAL COURT

(A) The Chickasaw Tribal Court shall prepare a file of each rejected applicant for Chickasaw citizenship, when a rejected applicant requests a hearing by the Tribal Court. The Tribal Court shall have 30 days from the date of the request for a hearing to enter an order granting or denying such hearing. At the end of a 30 day grace period, the Clerk of the Tribal Court shall certify to the Chickasaw Nation the name of those rejected applicants who have petitioned the Tribal Court for a hearing on their rejected application, but who are being denied a hearing; and, those rejected applications on which the Tribal Court has granted a hearing and the date of such hearing.

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(B) The Tribal Court shall maintain each rejected applicants file in each case that is pending before the Tribal Court, until ultimate disposition of each case is determined.

(C) The Tribal Court, at their discretion, may dispose of any file on a rejected applicant who has been denied a hearing and who does not have any other avenue of appeal from the decision of the Tribal Court. The Tribal Court shall so notify the Chickasaw Nation of such disposition.

(D) The Tribal Court shall inform the Chickasaw Nation of each rejected applicant in which the Tribal Court has determined that citizenship in the Chickasaw Nation has been confirmed by the Tribal Court.

SECTION 10. EFFECTS OF DECISIONS

The decision of the Tribal Court, at the conclusion of all appeals, shall be final.

SECTION 11. CITIZENSHIP CARD

(A) Upon a persons verification of citizenship in the Chickasaw Nation, said person shall be issued a "Citizen of the Chickasaw Nation" citizenship card, issued by the Chickasaw Nation, which shall, as a minimum, contain the following:

(1) Name of Citizen and Date of Birth (if known)

(2) The citizenship card shall bear a control number that the Chickasaw Nation shall use to insure the integrity and validity of the citizenship card; and, the card shall be imprinted with the Seal of the Chickasaw Nation in confirmation of Citizenship.

(3) The person designated for receiving and processing citizenship cards of the Chickasaw Nation shall certify, in writing, to the appropriate official of other Indian Nations the identity of a person of Indian mixed-blood who has declared his or her Chickasaw citizenship. The Indian mixed-blood Chickasaw shall counter-endorse such writing before a citizenship card is issued to such mixed-blood Chickasaw.

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SECTION 12. RECORDS

(A) All records of all Chickasaw citizens and applicants are confidential and may be used, only, in accordance with official business of the Chickasaw Nation.

(B) Upon receipt of appropriate documentation, the Chickasaw Nation is authorized to update the information of an applicant or citizen. The following information is deemed acceptable for documentation:

- (1) Name Change by marriage, divorce, or court decree.
- (2) Written and signed statement of applicant or citizen of a change of address.
- (3) Record of Death by Death Certificate, BIA Records, Mortuary Records, Hospital Records, Obituary Notice from a newspaper, written and signed statement from a relative (in the absence of previous stated documentation), written and signed statement from someone who attended the funeral and who can document the grave location and date of death, or by court decree.

SECTION 13. LOSS OF CITIZENSHIP

(A) Any citizen of the Chickasaw Nation, who is 18 or older, may relinquish such citizenship in writing, to the Chickasaw Nation, which must be signed by the maker and notarized. In lieu of being notarized, makers signature can be confirmed by the signing of two witnesses. Such relinquishment shall become effective on the date it is received by the Chickasaw Nation.

(B) A legal guardian of a minor or incompetent may request the relinquishment of such minor's or incompetent's citizenship upon documented proof to the office of the Tribal Registration that the guardian has legal custody of the minor or the incompetent.

(C) A citizen of the Chickasaw Nation who is discovered to have been erroneously conferred citizenship in the Chickasaw Nation, pursuant to the provisions of this Act or the Constitution of the Chickasaw Nation shall be subject to revocation of citizenship in the Chickasaw Nation under the following provisions:

- (1) Said citizen shall be notified by certified mail, return receipt requested, by the Chickasaw Nation of the

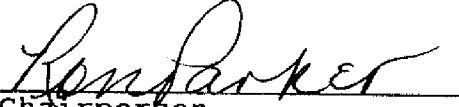
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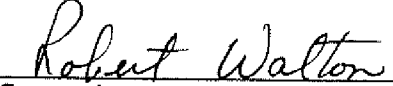
intent to revoke citizenship and the information that brought the action. Such notice shall include the date for the hearing which shall be no less than 30 days, and that the matter will be heard by the Tribal Court as a review panel on that date in informal session, and that such citizen may appear to show cause why citizenship should not be revoked. Failure of the citizen to appear at the scheduled hearing shall be accepted by the review panel that such citizen shall abide by that panel's decision. The decision of the review panel shall be final.

SECTION 14. EFFECTIVE DATE

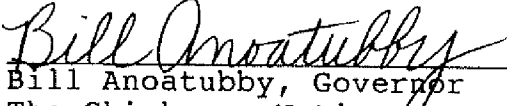
This law shall become effective on the date that it is duly adopted as law in accordance with the provisions of the Constitution and laws of the Chickasaw Nation.

Executed in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on October 21, 1994, by a vote of 11 ayes, 0 nays, and 2 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date: OCT 21 1994